



CHAPTER xii.

An Act to confer further powers on the South Wales Electrical Power Distribution Company to change their name to reorganise increase define and regulate their capital and borrowing powers and for other purposes. A.D. 1932.

[12th May 1932.]

WHEREAS the South Wales Electrical Power Distribution Company (hereinafter referred to as "the Company") were incorporated by Act of Parliament in 1900 with power to supply electricity (subject to the conditions and limitations contained in that Act) in an area of supply which comprises the whole of the county of Glamorgan part of the county of Monmouth and the county boroughs of Cardiff Swansea and Newport :

And whereas other powers have been conferred on the Company by the Act of 1900 and by subsequent Acts passed in the years 1902 1905 1906 1908 1920 1922 1925 each of which Acts is hereinafter referred to as the Act of the year in which it was passed :

And whereas under section 13 of the Act of 1900 and section 5 of the Act of 1906 the authorised share capital of the Company is £1,750,000 and the Company have created and issued 61,012 ordinary shares of £10 each which by the Act of 1922 were reduced and converted into £152,530 ordinary stock and 12,532 5 per centum preference shares of £10 each which have been issued

A.D. 1932. — in pursuance of section 19 of the Act of 1908 as fully paid up shares to certain creditors of the Company in satisfaction and discharge of the amounts then owing by the Company to those creditors :

And whereas the Company were authorised by the Act of 1900 (subject as mentioned in section 26 of that Act) to borrow on mortgage of the undertaking or to raise by the creation and issue of debenture stock the total sum of £250,000 and in pursuance of that power the Company have created and issued £200,000 5 per centum debenture stock which is fully paid up :

And whereas in pursuance of provisions contained in the Act of 1906 and the Act of 1908 the interest on the said £200,000 5 per centum debenture stock was for a period of four years paid and satisfied by the issue to the holders thereof of deferred warrants for the interest due thereon (such warrants themselves carrying interest at the rate of 5 per centum per annum) and by section 5 of the Act of 1920 the Company were required to create and issue to the holders of the deferred warrants further 5 per centum debenture stock (ranking *pari passu* with the before-mentioned debenture stock) in satisfaction and discharge of the amounts secured by the warrants which amounted in the aggregate to £95,000 :

And whereas in pursuance of that requirement the Company have created and issued to the holders of the deferred warrants £92,720 5 per centum debenture stock and there were outstanding on the first day of March nineteen hundred and thirty-two deferred warrants for £2,280 in respect of which the issue of 5 per centum debenture stock had not been claimed :

And whereas by section 10 of the Act of 1906 and section 4 of the Act of 1920 the Company were empowered to create and issue 5 per centum prior lien debenture stock up to a total nominal amount of £1,000,000 and ranking as to both principal and interest in priority to any mortgages debentures or debenture stock issued or to be issued and the interest thereon and redeemable at a premium of five per centum and the total amount of prior lien debenture stock issued by the Company and outstanding on the first day of March nineteen hundred and thirty-two was £988,696 :

And whereas on the first day of March nineteen A.D. 1932.
hundred and thirty-two the issued share and loan
capital of the Company consisted of—

£152,530 ordinary stock;

£125,320 in 5 per centum preference shares of £10
each;

£292,720 5 per centum debenture stock;

£988,696 5 per centum prior lien debenture stock;

all of which were fully paid up :

And whereas the demands for a supply of electricity within the Company's limits of supply are increasing and the expenditure of further capital is required to meet these demands and in order to facilitate the raising of further capital by the Company it is expedient to make provision as in this Act contained for the extinction of the said prior lien debenture stock and the conversion of the preference shares into ordinary stock and for enlarging the powers of the Company with reference to the creation and issue of share and loan capital :

And whereas the holders of more than three-fourths in value of the existing prior lien debenture stock and of the existing preference shares have respectively consented in writing to the provisions of this Act so far as they affect such prior lien debenture stock and preference shares :

And whereas by the Act of 1908 provision was made for the working by the Treforest Electrical Consumers' Company Limited (in that Act and hereinafter referred to as " the Treforest Company ") of part of the Company's undertaking and for the appointment of a debenture agent to protect the interests of the holders of the then issued prior lien debenture stock (most of which stock was held by the Treforest Company) and debenture stock during any such working arrangement or agreement with the Treforest Company :

And whereas the Treforest Company (whose name has been changed to " the South Wales Power Company Limited ") have disposed of the whole of their holding of prior lien debenture stock and have ceased to carry on the working arrangement for which provision was so made by the Act of 1908 and are now in liquidation and it is expedient to repeal the provisions of the Act of 1908 and subsequent Acts relating to that working

A.D. 1932. — arrangement and to the appointment and functions of the debenture agent :

And whereas it is expedient to confer further powers on the Company as by this Act provided and to enact the other provisions of this Act :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

PART I.

PRELIMINARY.

Short and
collective
titles.

1.—(1) This Act may be cited as the South Wales Electric Power Act 1932.

(2) The South Wales Electrical Power Distribution Company Acts 1900 to 1925 and this Act may be cited together as the South Wales Electric Power Acts 1900 to 1932.

Act divided
into Parts.

2. This Act is divided into the following Parts :—

Part I.—Preliminary.

Part II.—Financial.

Part III.—Administrative.

Part IV.—Works and supply of electricity.

Part V.—Miscellaneous.

Part VI.—Protective provisions.

Incorporation
of
Acts.

3. The Companies Clauses Consolidation Act 1845 and the Companies Clauses Act 1863 (as amended by subsequent Acts) except the provisions relating to the rate of dividend on preference capital and except sections 22 32 and 34 are (so far as applicable for the purposes of this Act and not inconsistent with or varied by the provisions of the existing Acts or this Act) hereby incorporated with and form part of this Act.

Application
of Elec-
tricity (Sup-
ply) Acts.

4.—(1) Sections 2 and 3 of the Electric Lighting Act 1888 shall not apply to the undertaking authorised by the existing Acts and this Act or to the Company in relation thereto.

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(2) The provisions of the schedule to the Electric Lighting (Clauses) Act 1899 are incorporated with and form part of this Act and shall apply to the undertaking authorised by the existing Acts and this Act and to the Company in relation thereto subject as follows:—

- (a) Sections 2 3 5 7 8 9 21 to 29 30 (so far as respects supply in bulk) 31 32 34 to 37 41 48 64 to 68 75 78 83 and 84 of the schedule shall not apply to the said undertaking or to the Company in relation thereto;
- (b) Section 14 of the schedule shall extend and apply to the laying down and placing of any cables or other works in through under along or across the bed and foreshore of any river;
- (c) Section 20 of the schedule in its application to the Company shall have effect as if after the words “electric signalling communication” wherever they occur there were inserted the words “or electrical control of railways”;
- (d) The provisions of the schedule which are hereby incorporated with this Act shall be incorporated and shall apply to the said undertaking subject to any modifications of those provisions contained in the existing Acts or this Act or in the Electricity (Supply) Acts 1882 to 1928.

(3) Nothing in this section shall affect the application of the Electric Lighting Act 1888 and the schedule to the Electric Lighting (Clauses) Act 1899 to the undertaking authorised by any Electricity Order of which the Company are for the time being the undertakers or to the Company in relation to any such undertaking.

5. In this Act words and expressions to which meanings are assigned by the Companies Clauses Consolidation Act 1845 the Electric Lighting Act 1882 or the schedule to the Electric Lighting (Clauses) Act 1899 have the same respective meanings except as otherwise stated in this section and except where there is something in the subject or context repugnant to such construction and the following expressions have the meanings herein mentioned unless the subject or context otherwise requires:—

“The Company” means the South Wales Electrical Power Distribution Company;

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- “ The Act of 1900 ” “ the Act of 1902 ” “ the Act of 1905 ” “ the Act of 1906 ” “ the Act of 1908 ” “ the Act of 1920 ” “ the Act of 1922 ” and “ the Act of 1925 ” respectively mean the South Wales Electrical Power Distribution Company Acts of those respective years ;
- “ The existing Acts ” means the Act of 1900 the Act of 1902 the Act of 1905 the Act of 1906 the Act of 1908 the Act of 1920 the Act of 1922 and the Act of 1925 ;
- “ The principal Acts ” means the Electricity (Supply) Acts 1882 to 1928 ;
- “ The undertaking ” means the undertaking of the Company for the time being authorised ;
- “ The area of supply ” means the area for the time being of the Company for the supply of electricity under the existing Acts and this Act and any subsequent Act relating to the Company but does not include the area of supply under any Electricity Order for which the Company are for the time being the authorised undertakers except so far as any such last-mentioned area is within the area of supply under the said Acts ;
- “ Electricity Order ” means any Provisional Order or Special Order made under the principal Acts or any of them ;
- “ Authorised undertakers ” has the meaning given to that expression by the Electricity (Supply) Act 1919 ;
- “ The Minister ” means the Minister of Transport ;
- “ Employee ” includes any managing director officer or servant ;
- “ The existing prior lien debenture stock ” means the prior lien debenture stock issued by the Company under the authority of the Act of 1906 and the Act of 1920 and existing at the passing of this Act ;
- “ The existing debenture stock ” means the debenture stock issued under the authority of the Act of 1900 and section 5 of the Act of 1920 and existing at the passing of this Act ;
- “ The existing preference shares ” means the preference shares of ten pounds each issued under

the authority of the existing Acts and existing at the passing of this Act; A.D. 1932.
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“The existing authorised share capital” means the capital of one million seven hundred and fifty thousand pounds which the Company are authorised by the existing Acts to raise by the creation and issue of ordinary and preference shares and stock;

“The authorised share capital” means the total amount which the Company are from time to time authorised by the existing Acts and this Act and any subsequent Act and by any Order made under the section of this Act of which the marginal note is “Increase of capital powers by Special Order” to raise by the creation and issued of ordinary preferred ordinary and preference shares and stock of any class;

“The authorised loan capital” means the amount which the Company are from time to time authorised by the existing Acts and this Act and any subsequent Act and any such Order as last aforesaid to raise by borrowing on mortgage of the undertaking or by the creation and issue of prior lien debenture stock or debenture stock of any class but does not include any money which the Company are authorised to borrow temporarily under section 29 (Company may incur temporary loans) of the Act of 1906 or by the creation and issue of notes or bonds under the section of this Act of which the marginal note is “Short term securities.”

6. As from the passing of this Act the name of the Company shall be “the South Wales Electric Power Company.” Change of name.

PART II.

FINANCIAL.

7.—(1) On the passing of this Act each of the existing preference shares shall become and be by virtue of this Act converted into ten pounds (nominal amount) of ordinary stock. Conversion of existing preference shares into ordinary stock.

(2) The ordinary stock into which any of the existing preference shares shall be so converted (hereinafter called “substituted stock”) shall be deemed to be

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paid up to the extent to which those shares were paid up immediately prior to the passing of this Act and shall be by virtue of this Act vested in the holders at the passing of this Act of those shares and shall be registered in the names of those holders in the books of the Company as soon as practicable after the passing of this Act.

(3) All the substituted stock shall rank for dividend as from the first day of January nineteen hundred and thirty-two and as from that date the existing preference shares shall be deemed to have ceased to bear any dividend.

Company's
books to
be evidence
as to holders
of existing
preference
shares.

8.—(1) The several persons who immediately before the passing of this Act appear on the registers of the Company to be holders of existing preference shares or the respective executors or administrators of those persons shall for the purposes of this Act and subject to the provisions of the section of this Act of which the marginal note is "Transfers &c. of existing preference shares although by present name to be valid" be deemed to be the holders of existing preference shares of the number stated in the registers and on and after the passing of this Act the register of transfers of the existing preference shares shall be permanently closed and (except as provided by the said section of this Act) no transfer of any existing preference shares made on or after the passing of this Act shall as between the Company and the party claiming thereunder be of any effect.

(2) The issue by the Company of certificates for substituted stock in accordance with the provisions of this Part of this Act to the persons whose names appear by the said registers to be registered holders of existing preference shares or to the respective executors or administrators of such persons or to the persons entitled thereto pursuant to the aforesaid section of this Act shall be sufficient discharge to the Company for all purposes.

Substituted
stock to be
held on
same trusts
&c. as
existing
preference
shares.

9. All substituted stock vested in the holders of the existing preference shares pursuant to the foregoing provisions of this Act shall be held in the same rights upon the same trusts and subject (so far as is consistent with those provisions) to the same powers provisions charges and liabilities as those in upon or subject to which the existing preference shares for which the

substituted stock is substituted were held immediately before the passing of this Act and shall be dealt with applied and disposed of accordingly and so as to give effect to and not to revoke any deed will or other instrument disposing of or affecting any such existing preference shares and trustees executors or administrators and all other holders in any representative or fiduciary capacity and persons under disability may and shall accept the substituted stock which under the foregoing provisions of this Act are vested in them respectively in substitution for the existing preference shares held by them and may subject to the provisions of this Act retain dispose of or otherwise deal with the same as fully and freely in all respects as they might have retained disposed of or otherwise dealt with such existing preference shares. A.D. 1932.
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10.—(1) The Company shall as soon as practicable after the passing of this Act call in the certificates of the existing preference shares and issue in exchange for those certificates to the respective holders thereof (free of charge) certificates of substituted stock of the respective amounts to which those holders are by this Act respectively entitled but no holder shall be entitled to a new certificate until he shall have delivered up to the Company to be cancelled the existing certificate for which such certificate is to be substituted or shall have proved to the reasonable satisfaction of the directors the loss or destruction thereof and shall have given such guarantee or indemnity in respect thereof as the directors may require. Certificates of existing preference shares to be called in and others issued.

(2) Until the issue of such new certificates the holders of the existing certificates shall (according to the amounts of substituted stock to be issued by virtue of this Act in substitution for the existing preference shares which such certificates respectively represent) have and possess the same rights and privileges as if the existing certificates were certificates for those respective amounts of substituted stock but if any holder of any existing preference shares fails to send or deliver to the Company his existing certificate or certificates for the period of six months after notice in writing sent by post to the address appearing in the shareholders' address books the Company may suspend the payment of any dividend declared or made payable upon or in respect of the substituted stock so

A.D. 1932. — vested in him until such existing certificate or certificates is or are sent or delivered to the Company or is or are proved to the reasonable satisfaction of the directors to have been lost or destroyed and such guarantee or indemnity is given in respect of such lost or destroyed certificate or certificates as the directors may require.

Transfers
&c. of
existing
preference
shares
although by
present
name to be
valid.

11. All transfers or other dispositions of any existing preference shares made but not registered prior to the issue to the holder of the shares of the certificate for substituted stock to which the holder is entitled under the foregoing provisions of this Act shall (notwithstanding this Act) be valid and have due effect given to them respectively as transfers or dispositions of the respective amounts of substituted stock which are substituted under the provisions of this Act for the existing preference shares thereby expressed to be transferred or disposed of although the instrument transferring or disposing thereof shall describe the same by the name which the shares transferred or disposed of had before conversion under this Act and any bequest of or any covenant or provision of any deed or agreement relating to any specified number of existing preference shares shall be held to apply to an amount of substituted stock equal to that which is under the provisions of this Act substituted for such specified number of existing preference shares.

Substituted
stock and
ordinary
stock to
form one
class.

12. The substituted stock and the ordinary stock in the capital of the Company existing at the passing of this Act and all ordinary stock forming part of any additional capital issued by the Company after the passing of this Act under the powers of the existing Acts and this Act shall for all purposes form one and the same class of stock.

Purchase
and can-
cellation or
redemption
of prior lien
debenture
stock.

13.—(1) The Company and any holder of existing prior lien debenture stock (including trustees executors administrators and all other holders in any representative or fiduciary capacity) may agree for the purchase by the Company of the prior lien debenture stock held by such holder in consideration of the payment to the holder of a sum of cash or of the issue to him of debenture stock or ordinary or preferred ordinary or preference shares or stock of any class or partly by one of those modes and partly by any others of them :

Provided that the amount of any sum of cash paid or debenture stock or shares or stock issued to a holder of existing prior lien debenture stock under the provisions of this subsection as the consideration for the purchase of the prior lien debenture stock held by him shall not exceed—

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- (a) if a sum of cash an amount equal to one hundred and five per centum of the nominal amount of the prior lien debenture stock;
- (b) if debenture stock a nominal amount of stock equal to the nominal amount of the prior lien debenture stock; and
- (c) if ordinary or preferred ordinary or preference shares or stock a nominal amount equal to one hundred and fifty per centum of the nominal amount of the prior lien debenture stock.

(2) The directors may for the purposes of subsection (1) of this section—

- (a) without further or other sanction or authority than is given by this subsection issue to the holders of prior lien debenture stock such nominal amounts of debenture stock and of ordinary and preferred ordinary and preference shares and stock of any class as may be required for those purposes; and
- (b) apply any money for the time being in the hands of the Company and available for capital purposes.

(3) All prior lien debenture stock purchased by the Company under the powers of this section shall be forthwith cancelled and extinguished and no prior lien debenture stock shall be issued by the Company after the passing of this Act under the powers of the existing Acts or this Act.

(4) (a) All debenture stock issued by the directors in pursuance of subsection (2) of this section shall be deemed to have been lawfully created by the Company in exercise of their powers under the section of this Act of which the marginal note is "Loan capital" to create and issue debenture stock and to be fully paid up and shall bear interest at the rate of five per centum per annum and shall rank *pari passu* (both as to principal and interest) with the existing debenture stock.

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(b) All shares and stock (other than debenture stock) issued by the directors in pursuance of subsection (2) of this section shall be deemed to have been lawfully created by the Company in exercise of their powers under the existing Acts and the section of this Act of which the marginal note is "Additional share capital" to create and issue shares and stock (other than debenture stock) and to be fully paid up.

(5) Notwithstanding the repeal by this Act of section 3 (Working arrangement with Treforest Company) of the Act of 1908 or any other provision of this Act all or any part of the existing prior lien debenture stock which is not purchased by the Company under subsection (1) of this section may be redeemed on six months' notice in writing from the Company to the holder thereof at the price of one hundred and five pounds for each one hundred pounds of such stock and so in proportion for any fraction of one hundred pounds of such stock.

Additional
share
capital.

14.—(1) In addition to the existing authorised share capital the Company may subject to the provisions of Part II of the Companies Clauses Act 1863 (so far as incorporated with this Act) raise any additional capital not exceeding in the whole two hundred and fifty thousand pounds (nominal capital) by the issue at their option of new ordinary and preferred ordinary and preference shares and stock or wholly or partially by any one or more of those modes respectively but no share so issued shall vest in the person accepting it unless and until a sum not being less than one-fifth of the amount of the share shall have been paid in respect thereof.

(2) Except as otherwise provided by this Act or the resolution creating the same the capital in new shares or stock created by the Company under this section and the new shares or stock therein and the holders thereof respectively shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if that capital were part of the share capital authorised by the existing Acts of the same class or description and the new shares or stock were shares or stock in that capital.

15.—(1) Any shares or stock created by the Company after the passing of this Act as part of the existing authorised share capital or under the provisions of the last preceding section of this Act may be created and issued with such priorities as to capital and with such fixed fluctuating contingent preferential perpetual terminable deferred or other dividend or interest of such rate or amount (limited or unlimited) and the holders thereof respectively shall be entitled and subject to such rights of voting (if any) and such other powers rights privileges and liabilities whether as to capital or dividend as the Company may determine. Provided that any preference assigned to any shares or stock so issued shall not affect any guarantee or any preference or priority in the payment of dividend or interest on any shares or stock that may have been created and issued by the Company under the existing Acts or that may be otherwise lawfully subsisting.

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Provisions
as to new
share
capital.

(2) Notwithstanding anything in the existing Acts or this Act or any enactment incorporated therewith any ordinary preferred ordinary and preference shares created by the Company after the passing of this Act shall be of such nominal value as the directors may determine at the time of the issue thereof but not being less than one pound.

16.—(1) The Company may at such times in such manner and on such terms and conditions as they may think fit but as regards debenture stock subject to the provisions of Part III of the Companies Clauses Act 1863 (so far as incorporated with this Act) and of the next succeeding section of this Act raise for the purposes of the existing Acts and this Act and the general purposes of the undertaking either at their option by borrowing on mortgage of the undertaking or by the creation and issue of debenture stock of the same or different classes and with the same or different rights of priority or other rights or partly by either of those modes the following sums :—

Loan
capital.

- (i) in respect of the existing authorised share capital any sum or sums not exceeding in the whole (together with the nominal amount of the existing prior lien debenture stock the existing debenture stock and any debenture stock issued in substitution for prior lien

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debenture stock under the section of this Act of which the marginal note is "Purchase and cancellation or redemption of prior lien debenture stock" or after the passing of this Act in pursuance of section 5 (Issue of debenture stock to holders of deferred warrants in satisfaction of their claims) of the Act of 1920 and for the time being outstanding) one million three hundred and forty-five thousand pounds; and

(ii) in respect of the additional share capital authorised by this Act any sum or sums not exceeding in the whole one hundred and twenty-five thousand pounds.

(2) Notice of the effect of subsection (1) of this section shall be endorsed on every mortgage and certificate of debenture stock granted or issued after the passing of this Act.

(3) The powers conferred on the Company by this section shall be in substitution for and not in addition to the powers conferred on the Company by the existing Acts of borrowing on mortgage of the undertaking and of creating and issuing debenture stock so far as those powers have not been exercised prior to the passing of this Act but this provision shall not affect the operation of the said section 5 of the Act of 1920 so far as the provisions of that section have not been carried into effect prior to the passing of this Act.

Priorities of
debenture
stock.

17.—(1) Notwithstanding anything in the last preceding section of this Act the existing prior lien debenture stock shall during the continuance thereof have priority as to both principal and interest over any mortgages or debenture stock granted or created and issued in pursuance of that section.

(2) The existing debenture stock and any debenture stock issued after the passing of this Act in pursuance of the said section 5 of the Act of 1920 or issued in substitution for prior lien debenture stock under the section of this Act of which the marginal note is "Purchase and cancellation or redemption of prior lien debenture stock" shall form one and the same class of debenture stock and together with any debenture stock issued under the last preceding section

of this Act of the same class be deemed to be first A.D. 1932.
debenture stock.

(3) Notwithstanding anything in Part III of the Companies Clauses Act 1863 the interest of all first debenture stock and of all mortgages at any time granted by the Company under this Act or any subsequent Act or Order shall subject to the provisions of any subsequent Act or Order rank *pari passu* (without respect to the dates of the securities or of the Acts or Orders or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages.

(4) No debenture stock shall be created and issued in pursuance of the last preceding section so as to rank whether as to interest or principal in priority to the first debenture stock.

(5) Notice of the effect of this enactment shall be endorsed on every mortgage and certificate of debenture stock granted or issued after the passing of this Act.

18. The Company may for the purposes of or in connection with the undertaking raise money by the issue of notes or bonds of a currency of not less than five years nor more than ten years Provided that the aggregate amount outstanding at any one time of the money raised under this section shall not exceed one hundred thousand pounds.

Short term
securities.

19. The authorised share capital the authorised loan capital and the amount which may be raised by the Company under the last preceding section of this Act may from time to time be further increased to such extent as may be authorised by a Special Order made by the Electricity Commissioners and confirmed by the Minister in accordance with the provisions of the principal Acts and the Company are hereby authorised to make application for and the Electricity Commissioners to make and the Ministry to confirm such Order accordingly Provided that a Special Order made in pursuance of the powers conferred by this section shall be laid before each House of Parliament and shall not come into force unless and until approved either with or without modification by a resolution passed by each such House.

Increase of
capital
powers by
Special
Order.

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Defining
share and
loan capital.

20. It is hereby declared that—

- (i) the amount of share capital which may from time to time be created and issued by the Company shall be the amount (if any) by which the aggregate amount of the authorised share capital as defined in Part I of this Act exceeds the aggregate nominal amount of the ordinary and preferred ordinary and preference shares and stock of any class for the time being created and issued and outstanding; and
- (ii) the amount which may from time to time be borrowed by the Company on mortgage of the undertaking or raised by the creation and issue of debenture stock of any class shall be the amount (if any) by which the aggregate amount of the authorised loan capital as defined in Part I of this Act exceeds the aggregate nominal amount of the prior lien debenture stock and mortgages and debenture stock of any class for the time being created and issued or granted and outstanding.

As to special
classes of
shares and
securities.

21.—(1) The Company may (subject and without prejudice to the terms on which any prior issue of shares shall have been made) at any time in general meeting held for the purpose of authorising the issue under the powers of the existing Acts or this Act or any subsequent Act or Order of any shares in the capital of the Company determine that such shares shall on the issue thereof form a special class or classes of shares instead of forming part of any then existing class or classes of shares or forming any new class of shares authorised by section 13 of the Companies Clauses Act 1863.

(2) The terms and conditions to which the shares in any special class are subject shall be clearly stated on the certificates of those shares.

(3) In this section the word “share” includes stock but not debenture stock.

Redeemable
capital and
debenture
stock.

22.—(1) In this section unless the context otherwise requires—

“Stock” means and includes any class of shares or stock forming part of the authorised share

capital (other than ordinary or preferred ordinary shares or stock) and any class of debenture stock forming part of the authorised loan capital;

“ Issue ” includes re-issue;

“ Redeemable stock ” means any stock issued under the powers of this section so as to be redeemable;

“ Redeemed stock ” means any redeemable stock which has been redeemed and is available for issue under the provisions of this section.

(2) Subject to the provisions of this section the directors may from time to time by virtue of this Act and without further or other sanction issue so as to be redeemable any stock created by the Company after the passing of this Act.

(3) Redeemable stock may be redeemed either by paying off the stock or by issuing to the holder of the stock (subject to his consent) other stock in substitution therefor and for the purpose of raising money to pay off or of providing stock in substitution for any redeemable stock the Company may create new stock or ordinary or preferred ordinary shares or stock or the directors may issue any redeemed stock so as to be redeemable or irredeemable as they may think fit. Provided that no new stock shall be created nor shall any redeemed stock be issued so as to make the total amount of any particular class of stock exceed the amount of stock of that class which the Company are for the time being authorised to create except during any necessary interval between the creation or (in the case of redeemed stock) the issue of the stock and completion of the redemption of the redeemable stock for the purpose of redeeming which the stock of such particular class is proposed to be so created or issued.

(4) Redeemable stock shall bear such rate of dividend or interest (not exceeding any maximum rate prescribed in respect of the particular class of stock) and shall be redeemable at such time and in such manner and subject otherwise to such terms and conditions as the directors may before the issue thereof determine :

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Provided that the terms and conditions of redemption upon which any redeemable stock is issued shall be stated in any offer by the Company of such stock for sale and in the certificate of such stock and no term or condition of redemption which is not so stated shall be binding upon the holder of the stock.

(5) The Company shall not redeem out of revenue any redeemable stock issued in pursuance of this section other than debenture stock.

Power to
issue bearer
securities.

23. Sections 15 to 27 of the Act of 1906 (which sections relate to the issue of share warrants to bearer and debenture stock certificates to bearer and to holders of such warrants and certificates) shall extend and apply with respect to the whole or any portion of any ordinary preferred ordinary and preference shares and stock and debenture stock which the Company may from time to time create or determine to issue under the authority of this Act or of any Order made under the section of this Act of which the marginal note is "Increase of capital powers by Special Order."

Power to
pay com-
missions.

24.—(1) Notwithstanding anything in the existing Acts or this Act or any Act incorporated therewith respectively it shall be lawful for the Company on any offer to the public of shares or stock forming part of the authorised share capital to pay a commission not exceeding (except with the consent of the Minister which consent the Minister is hereby authorised to give) five per centum to any person in consideration of his subscribing or agreeing to subscribe whether absolutely or conditionally or procuring or agreeing to procure subscriptions whether absolute or conditional for any such shares or stock if the payment of the commission and the amount or rate per centum of the commission paid or agreed to be paid are respectively disclosed in the prospectus advertisement or other document of the Company inviting subscriptions for those shares or stock.

(2) Nothing in this section shall affect any power of the Company to pay brokerage.

As to dis-
posal of
share
capital.

25. Notwithstanding anything in the Companies Clauses Consolidation Acts 1845 to 1889 or the Companies Clauses Act 1863 the Company may in issuing

any unissued portion of the authorised share capital dispose of all or any of the shares or stock representing such capital at such times to such persons on such terms and conditions and in such manner as the directors think advantageous to the Company. A.D. 1932.
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26. Notwithstanding anything in any Act the directors may from time to time by virtue of this section and without further or other sanction or authority exercise any powers for the time being vested in the Company of borrowing and reborrowing on mortgage or temporary loan or otherwise and of creating and issuing debenture stock of any class and of raising money by the issue of notes or bonds. Exercise of borrowing powers by directors.

27. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than ten thousand pounds in the whole. Appointment of receiver.

28.—(1) Notwithstanding anything in the existing Acts or this Act or the Acts incorporated therewith respectively the Company may out of any money which the Company may from time to time be authorised by any Act or Order to raise pay and charge to capital account interest at such rate not exceeding (except with the consent of the Electricity Commissioners which consent such commissioners are hereby authorised to give) six per centum per annum as the directors may determine to any holder of any shares in the capital of the Company on the amount from time to time paid up on such shares held by him during the period of five years or such less period as the directors may determine from the date or respective dates of issue of the shares but subject to the following conditions :— Power to pay interest on shares out of capital.

(a) No such interest shall accrue in favour of any shareholder for any time during which any call on any of his shares is in arrear;

(b) The aggregate amount to be so paid for interest shall not exceed sixty-two thousand five hundred

A.D. 1932.
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pounds or one fifth of the capital of the Company for the time being issued and paid up whichever may be the less;

(c) Notice that the Company have power so to pay interest out of capital shall be given in every prospectus advertisement or other document of the Company issued or published by or on behalf of the Company after the passing of this Act inviting subscriptions for any shares with respect to which the directors may have determined that such interest shall be paid and in every certificate of such shares;

(d) The accounts of the Company for any year in which interest has been paid in pursuance of this section shall show the amount of capital on which such interest has been paid and the aggregate amount of interest so paid.

(2) Save as set forth in subsection (1) of this section and except as may be otherwise expressly provided by the existing Acts or this Act no interest shall be paid out of any share or loan capital which the Company are by the existing Acts and this Act authorised to raise to any shareholder on the amount of the calls made in respect of the shares held by him but nothing in this Act shall prevent the Company from paying to any shareholder such interest on money advanced by him beyond the amount of the calls actually made as is in conformity with the Companies Clauses Consolidation Act 1845.

(3) In this section the word "share" includes stock but not debenture stock and the word "shareholder" shall be construed accordingly.

Power to
pay interest
on bor-
rowed
money out
of capital.

29.—(1) Notwithstanding anything in the existing Acts or this Act or the Acts incorporated therewith respectively the Company may out of any money which the Company may from time to time be authorised by any Act or Order to raise pay and charge to capital account interest at such rate not exceeding (except with the consent of the Electricity Commissioners which consent such commissioners are hereby authorised to give) six per centum per annum as the directors may determine on the amount of any moneys borrowed on

mortgage or temporary loan or raised by the issue of debenture stock notes or bonds until the expiration of five years from the date or respective dates of the borrowing or issue thereof. A.D. 1932.
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(2) The aggregate amount to be so paid for interest shall not exceed thirty-seven thousand five hundred pounds.

30.—(1) The Company may subscribe for purchase hold and dispose of shares or stock of any company taking or agreeing to take a supply of electricity from the Company or establishing or about to establish factories or electrical or other works within the area of supply and may lend money on mortgage or bond or other security to any such company or to any firm or person taking or agreeing to take a supply of electricity from the Company or establishing or about to establish factories or electrical or other works within the area of supply Provided that the amount so subscribed and lent by the Company under this section shall not at any one time exceed five hundred thousand pounds. Financial arrangements with other undertakers &c.

(2) The Company may also by agreement with the proprietor of any share stock or securities of any such company as aforesaid effect exchanges of shares stock or securities of the Company for all or any of the shares stock or securities of the proprietor and on such terms and conditions as the directors may think fit.

31.—(1) All money raised by the Company under this Act whether by shares stock debenture stock notes or bonds or by borrowing shall be applied only to the purposes of the existing Acts and this Act and the general purposes of the undertaking being in every case purposes to which capital is properly applicable. Application of moneys.

(2) The Company may apply to the purposes of this Act to which capital is properly applicable any money which they have raised or may hereafter raise under the existing Acts and which may not be required for the purposes for which it was authorised to be raised.

32. If any money is payable to a shareholder or stockholder or mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee or receiver of his estate shall be a sufficient discharge to the Company. Receipt in case of persons not sui juris.

A.D. 1932.

PART III.

ADMINISTRATIVE.

Annual
meetings.

33. Notwithstanding anything in the Companies Clauses Consolidation Act 1845 the ordinary meetings of the Company shall (except as the Company may from time to time by a resolution of a general meeting otherwise determine) be held once only in each year in such month and at such time and place as the directors may from time to time determine.

Notice of
meetings.

34. Any meeting of the Company whether ordinary or extraordinary may (if the directors so determine) be convened by notice delivered at or sent by post to the registered address or other known address of each proprietor of the Company not less than six clear days before the date of the meeting. In proving that any such notice has been posted it shall be sufficient to prove that the notice was properly addressed and put into the post and prepaid not later than the time hereby prescribed.

Quorum for
general
meeting.

35. For the purposes of constituting a meeting of the Company (whether ordinary or extraordinary) the prescribed quorum referred to in section 72 of the Companies Clauses Consolidation Act 1845 shall be five shareholders.

Voting at
general
meetings.

36.—(1) At all general meetings of the Company (whether ordinary or extraordinary) every holder of ordinary and preferred ordinary capital and of any preference capital to which voting rights are attached by the resolution creating such capital shall on a show of hands be entitled to one vote and on a poll to one vote in respect of each ten pounds in the nominal value of the capital held by him. Provided that no such holder shall be entitled to vote at any meeting in respect of any share or stock on which any call remains unpaid.

(2) Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any capital to which a preferential dividend shall be assigned.

Appoint-
ment of
proxies.

37. Notwithstanding anything in the Companies Clauses Consolidation Act 1845 the attorney of any holder of shares in the capital of the Company duly authorised in writing may appoint a proxy to vote for

and on behalf of the holder and for that purpose may execute on behalf of the holder the necessary form of proxy Provided that the instrument appointing the attorney shall be sent to the secretary at the same time as the instrument appointing the proxy. A.D. 1932.
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38. Notwithstanding anything in the Companies Clauses Consolidation Act 1845 where several persons are jointly entitled to and registered as holders of any share in the capital of the Company any one of those persons may vote at any meeting either personally or by proxy in respect of the share as if he were solely entitled thereto but if more than one of such joint holders be present at any meeting personally or by proxy that one of the said persons so present whose name stands first on the register in respect of the share shall alone be entitled to vote in respect thereof Several executors or administrators of a deceased member in whose name any share stands shall for the purposes of this section be deemed joint holders thereof. Joint holders.

39.—(1) The directors may whenever they think it expedient so to do convene a meeting of the holders of any particular class of either shares in the capital of the Company or of debenture stock issued by the Company and may submit to any such meeting any resolution affecting the rights of the holders of that class of shares or debenture stock and not prejudicially affecting the rights of the holders of any other security of the Company. Meetings of holders of particular classes of shares or debenture stock.

(2) Subject as regards debenture stock to the provisions of any trust deed or other instrument securing such stock any meeting of the holders of any particular class of shares or debenture stock (other than shares or debenture stock with respect to which a share warrant to bearer or a debenture stock certificate to bearer has been issued under the powers of the Act of 1906 and this Act) convened under this section shall be convened in manner mentioned in the section of this Act of which the marginal note is "Notice of meetings."

(3) Subject as regards debenture stock to the provisions of any trust deed or other instrument securing such stock if at a meeting of the holders of any particular class of shares or debenture stock convened under this section any resolution is passed with the

A.D. 1932. — approval of three-fourths in value of such holders present in person or by proxy at the meeting such resolution shall be deemed valid and be binding on all holders of shares or debenture stock (as the case may be) of the same class and due effect shall and may be given to such resolution by the Company and the directors accordingly.

(4) Notwithstanding the foregoing provisions of this section any meeting of the holders of debenture stock certificates to bearer which the directors may determine to convene under this section shall be convened in the manner mentioned in subsection (2) of section 24 (Provision in case of applications to Parliament affecting rights of holders of debenture stock) of the Act of 1906 and the provisions of that section shall with any necessary modifications apply to a meeting of holders of debenture stock certificates to bearer convened under this section.

(5) Notwithstanding the foregoing provisions of this section any meeting of the holders of share warrants to bearer which the directors may determine to convene under this section shall be convened in the manner mentioned in section 23 (As to notice to holders of share warrants) of the Act of 1906 and the provisions of subsections (3) (4) and (5) of the said section 24 of the Act of 1906 shall also apply to and for the purposes of a meeting of holders of share warrants to bearer convened by the directors under this section as though in those subsections the word "meeting" meant a meeting convened under this section the term "the bearers" meant the bearers of share warrants to bearer and the term "a bearer certificate" meant a share warrant to bearer.

Provisions
as to voting
&c. at meet-
ings of
particular
classes.

40.—(1) For the purposes of any meeting of holders of a particular class of either shares or debenture stock convened in pursuance of the last preceding section of this Act (other than a meeting of holders of share warrants to bearer or of debenture stock certificates to bearer) the provisions of sections 76 and 77 of the Companies Clauses Consolidation Act 1845 (as amended or modified by the Companies Clauses Consolidation Act 1888) with reference to the appointment of proxies by shareholders and voting by proxy and the provisions of the section of this Act of which the marginal note is "Appointment of proxies" shall apply to the appointment of proxies by the holders

convened to the meeting and to voting by those proxies and the provisions of the section of this Act of which the marginal note is "Joint holders" and of section 79 (Votes of lunatics and minors &c.) of the said Act of 1845 shall apply to and in the case of the holders convened to the meeting as if in those sections the words "a share" or the word "share" included the words "stock" and "debenture stock" and the word "shareholder" included a holder of stock and a holder of debenture stock. A.D. 1932.

(2) For the purposes of any meeting of holders of a particular class of either shares or debenture stock convened in pursuance of the last preceding section of this Act (including a meeting of holders of share warrants to bearer or of debenture stock certificates to bearer) section 80 of the Companies Clauses Consolidation Act 1845 shall apply to the proof of the approval by the necessary majority of any resolution proposed at the meeting as if that section were re-enacted in this section with the substitution of the words "holders of any particular class of shares or stock or of debenture stock" for the word "company" in the first and second places where that word occurs in that section.

41.—(1) Except in the case of a director retiring by rotation and offering himself or being proposed for re-election no person shall be capable of being elected at an ordinary meeting a director of the Company unless notice in writing that such person intends to offer himself or will be proposed for the office of director shall have been given to the secretary or left at the head office of the Company not less than seven clear days before the day of election. As to directors.

(2) The qualification of a director shall be the possession in his own right of shares in the capital of the Company of any class of a total nominal amount of not less than two hundred pounds.

(3) Section 10 (As to qualification of the directors) of the Act of 1905 is hereby amended by the insertion therein of the words "or any subsequent Act or Order" after the words "or this Act."

(4) The continuing directors may act notwithstanding any vacancy in their body but so that if at any time the number of the directors shall be less than the minimum number prescribed by section 31 (Number of directors)

A.D. 1932. — of the Act of 1900 the directors shall not except for the purpose of filling vacancies and allotting shares to any proposed director or directors act so long as the number is below that minimum.

(5) If a vacancy arises amongst the directors by reason of the death resignation or disqualification of a director or from any other cause between the date of any annual meeting of the Company and the subsequent annual meeting the directors may elect some person being duly qualified to fill the vacancy. Any person so elected shall only continue in office by virtue of such election so long as the director in whose place he may be so elected would have been entitled to continue in office if the vacancy had not occurred but any such person if and so long as he continues duly qualified may be elected or re-elected a director by the proprietors of the Company in general meeting.

(6) If any director shall devote to the business of the Company either his whole time and attention or more of his time and attention than in the opinion of the directors of the Company would usually be so devoted by a person holding such office or shall undertake or perform any duties or services other than those which in the opinion of such directors would usually be undertaken or performed by a person holding such office or shall be called upon to perform and shall perform extra services for any of the purposes of the Company then and in any of such cases the directors may remunerate the director so doing either by a fixed sum annual or otherwise or in such other manner as shall be determined by the directors and such remuneration may at the discretion of the directors be either in addition to or in substitution for all or any part of any other remuneration to which such director may be entitled :

Provided that the amount of such remuneration shall be disclosed in the next annual report of the directors or in the next annual accounts of the Company.

Exercise of
minor powers
by one
director.

42. Section 95 of the Companies Clauses Consolidation Act 1845 shall be deemed to authorise the directors to appoint any one of their body as a committee for the purposes of passing transfers and sealing certificates of any shares or other securities of the Company and of executing any other minor powers exerciseable by the directors.

43. Notwithstanding anything in the Companies A.D. 1932.
Clauses Consolidation Act 1845 it shall not be obligatory
on the Company—

- (a) to keep separately a register of shareholders and a shareholders' address book but in lieu thereof the Company may if they think fit keep one register only containing such particulars as are required by that Act to be entered in the register of shareholders and the shareholders' address book respectively; or
- (b) to authenticate by the affixing of their common seal or otherwise the register of shareholders or any register which the Company may keep in lieu thereof under the powers of this section.
- Register of shareholders and shareholders' address book.

44.—(1) Any registered holder of shares or debenture stock of the Company of any class whose address is not in Great Britain shall from time to time name an address within Great Britain which shall for the purposes of the Company be deemed to be the address of the holder and shall be entered in the shareholders' address book or any register which the Company may keep in lieu thereof under the last preceding section of this Act or the register of debenture stock kept by the Company in pursuance of section 28 of the Companies Clauses Act 1863 and it shall not be obligatory on the Company to send any notice to any such holder otherwise than to an address so named.

As to addresses of shareholders or debenture stock-holders abroad.

(2) This section shall apply to the holder of a share warrant to bearer or a debenture stock certificate to bearer who exercises the power of registration conferred on him by section 18 (Registration of shares or debenture stock on surrender of warrant or certificate) of the Act of 1906.

45. If and so long as the ordinary meetings of the Company shall be held once only in each year the following provisions shall have effect:—

Interim dividends and annual accounts.

- (a) It shall be lawful for the directors to pay in any year an interim half-yearly dividend out of the profits of the Company without the sanction or direction of a general meeting;
- (b) The Company and the directors shall not be required to make up a half-yearly balance sheet and accounts; and

A.D. 1932.

(c) The balance sheet and accounts made up by them in any year in accordance with section 116 of the Companies Clauses Consolidation Act 1845 shall relate to the transactions of the Company in the course of the period since the date to which the last preceding balance sheet and accounts of the Company were made up.

Form of
accounts.

46.—(1) Notwithstanding anything in section 9 of the Electric Lighting Act 1882 (as amended by section 6 of the schedule to the Electric Lighting (Clauses) Act 1899) in its application to the Company in respect of the several undertakings belonging to them it shall not be necessary for the Company to fill up a separate annual statement of accounts in respect of each of the undertakings for which they are for the time being the undertakers but they shall fill up one annual statement of account in respect of all such undertakings including the undertaking authorised by the existing Acts and this Act or any subsequent Act and the undertakings authorised by Electricity Orders (whether granted to the Company or to any other company or any local authority body or person by whom the undertaking thereby authorised has been or may be transferred to the Company).

(2) Each annual statement of account to be filled up by the Company pursuant to this section shall be in such form and shall contain such particulars and shall be published in such manner as may from time to time be prescribed in that behalf by the Electricity Commissioners.

(3) Subject to the provisions of this section the provisions of the said section 9 of the Electric Lighting Act 1882 (as amended as aforesaid) shall extend and apply to each annual statement of account to be filled up pursuant to this section.

Auditors.

47.—(1) The prescribed number of auditors of the accounts of the Company shall be one or two as the Company may from time to time in general meeting resolve but the Company may at any time and from time to time appoint a firm to be the auditors of those accounts.

(2) The said auditors or in the case of a firm being appointed as auditors the members of the firm need not hold shares in the capital of the Company.

(3) So long as a firm appointed under the provisions of this section are the auditors the provisions of the existing Acts and of this Act and of any Act incorporated therewith respectively relating to the prescribed number of auditors shall not apply to the Company. A.D. 1932.
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(4) A person other than a retiring auditor shall not be capable of being appointed at an ordinary meeting an auditor of the Company unless notice of an intention to nominate that person to the office of auditor has been given by a shareholder to the secretary not less than seven days before the meeting and the secretary shall send a copy of any such notice to the retiring auditor and shall give notice thereof to the shareholders either by advertisement or in any other mode determined by the directors not less than three days before the meeting.

(5) If any auditor of the Company dies or resigns the directors may appoint another auditor in his place and any auditor so appointed shall hold office until the next ordinary meeting.

48. In addition to the powers which the directors may exercise under the Companies Clauses Acts 1845 to 1889 they may determine the remuneration of the secretary and auditors. Remuneration of secretary and auditors.

49.—(1) The directors may close the register of transfers of shares of the Company of any class for a period not exceeding fourteen days previous to the payment of any dividend on any such shares and may close the register of transfers of debenture stock or mortgages of the Company of any class for a period not exceeding fourteen days previous to the payment of any interest on any such debenture stock or mortgages and the directors may in any such case fix a day for the closing of any register which they are authorised to close under the provisions of this section. Seven days' notice of the closing of any such register shall be given by advertisement in some newspaper published and circulating within the area of supply. Closing of transfer books.

(2) Any transfer of any shares or debenture stock or mortgages lodged for registration with the Company while the register of transfers relating to shares or debenture stock or mortgages of the same class is so closed shall as between the Company and the person

A.D. 1932. — claiming under the transfer but not otherwise be considered as made subsequently to the payment of any such dividend or interest.

Indemnity
may be
required
before issue
of substi-
tuted certi-
ficates &c.

50.—(1) Notwithstanding anything in section 13 of the Companies Clauses Consolidation Act 1845 or in any other enactment the Company shall not be under any obligation to issue a new mortgage or a new certificate of any shares or debenture stock of any class or a new warrant for any dividend or interest in lieu of any mortgage certificate or warrant lost or destroyed or alleged to be lost or destroyed until they have received from the person to whom such new mortgage certificate or warrant is to be issued such indemnity as the directors may require against any and every claim or expense which may be made against the Company or which the Company may incur in respect of such lost or destroyed mortgage certificate or warrant or the principal money shares debenture stock dividend or interest represented thereby.

(2) This section shall not apply to a share warrant to bearer or a debenture stock certificate to bearer or a coupon provided in connection with any such warrant or certificate or limit the application of section 25 (Loss or destruction of share warrant or debenture stock certificate to bearer or coupon) of the Act of 1906.

As to con-
tracts.

51. Notwithstanding anything in any Act relating to the Company any contract or agreement required to be in writing and not under seal may be signed on behalf of the Company by the secretary or other person appointed in that behalf by the directors.

Power to
make super-
annuation
and other
allowances.

52.—(1) The Company may grant such gratuities pensions or superannuation allowances or make such other payments as they may think fit to any employees of the Company or where in their opinion adequate provision is not otherwise made to the widow or family or any dependant of any such employee and they may establish and maintain a fund out of which such gratuities pensions allowances and payments may be granted or made.

(2) The Company may enter into and carry into effect agreements with any insurance company or other association or company for securing to any such employee

widow family or dependant as aforesaid such gratuities pensions allowances or payments as are by this section authorised to be granted or made and may for all or any of the purposes of this section apply the funds and revenues of the Company. A.D. 1932.
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53. In this Part of this Act—

the words “share” and “shares” include stock but not (except where expressly stated) debenture stock or prior lien debenture stock;

the word “shareholder” includes stockholder but not (except where expressly stated) the holder of debenture stock or prior lien debenture stock.

Meaning of
share and
shareholder
in this Part.

PART IV.

WORKS AND SUPPLY OF ELECTRICITY.

54.—(1) The Company may on any lands authorised to be used for the erection and working of a generating station or generating stations (in this section referred to as a “generating station site”) for the time being belonging to them (in addition to exercising any other powers vested in them) make produce work up convert store and utilise and may sell and deal in any products directly or indirectly arising in the generation of electricity by the Company and may also on any such generating station site erect provide lay down maintain and use buildings machinery works plant apparatus and conveniences and do all such acts as may be necessary for making producing working up converting storing utilising and selling any such products as aforesaid but save as aforesaid shall not on any such generating station site manufacture any by-products of coal or other minerals :

Extending
powers of
user of
generating
station
sites.

Provided that the Company shall not exercise in regard to any selected station within the meaning of the Electricity (Supply) Act 1926 any of the powers conferred upon them by this section without the consent in writing of the Central Electricity Board.

(2) Nothing in this section shall exonerate the Company from any indictment action or other proceedings for nuisance if any nuisance be caused or permitted by them.

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Use of
works and
apparatus.

55. The Company may use for the purpose of any undertaking belonging to them and authorised by any Act of Parliament or Electricity Order any mains wires works or apparatus laid down or provided by the Company for the purpose of any other undertaking so authorised and belonging to them.

Power to
lay con-
necting
mains.

56.—(1) For the purpose of conveying a supply of electricity from or to any area in respect of which the Company are for the time being authorised undertakers or of giving or taking a supply of electricity to or from any local authority company body or person to whom the Company are or may be authorised to supply or from whom the Company are or may be authorised to take a supply of electricity and of placing and maintaining electric lines and works for any such purpose the Company—

- (a) with respect to streets in any area in which they are or may be authorised to supply electricity shall have the powers and be subject to the provisions of the Acts and Orders relating to their powers of supply in that area; and
- (b) with respect to streets not within any area in which they are or may be authorised to supply electricity shall have the powers and be subject to the provisions of the principal Acts and the Electric Lighting (Clauses) Act 1899 and any Act amending or extending those Acts or any of them and those provisions so far as applicable but subject to the provisions of this section shall for the purposes of this section be incorporated with this Act and shall have effect and the Company shall be deemed to be the undertakers :

Provided that nothing in this subsection shall authorise the Company to break up or otherwise interfere with any street beyond the geographical counties of Glamorgan Monmouthshire Carmarthenshire Brecknockshire Radnorshire Herefordshire and Gloucestershire.

(2) Any electric line erected or laid down under the powers of this section shall be erected or laid in such line or route as may be agreed between the Company and the local authority and (as respects any county road within the meaning of the Local Government Act 1929 and not

being a county road vested in an urban district council) the county council or as failing agreement shall be settled by an arbitrator to be appointed by the Electricity Commissioners and where any local authority or county council object to any proposed line or route on the ground that it would traverse the principal thoroughfares or busy streets of the area over which they have jurisdiction and indicate an alternative route which in the opinion of the arbitrator is both reasonably practicable and does not involve undue increase of expenditure such alternative route shall be adopted. The reasonable and proper costs charges and expenses incurred by any local authority or county council in relation to any arbitration under this subsection shall in any case in which the arbitrator shall certify that the action of the local authority or county council in the matter has not been unreasonable be paid by the Company.

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(3) Any electric line erected or laid down under the powers of this section in any street in a county borough municipal borough or urban district to which the provisions of the section of this Act of which the marginal note is "For protection of highway authorities" does not apply shall also be laid in such a position in the street as may be agreed between the Company and the local authority or failing agreement be settled by an arbitrator to be appointed by the Electricity Commissioners.

(4) Nothing in this section shall take away or prejudicially affect the rights of the Postmaster-General under section 14 of the schedule to the Electric Lighting (Clauses) Act 1899 and the provisions of that section shall apply in respect of such alternative route.

57.—(1) The Company may for the purpose of supplying electricity to any premises within the area of supply abutting on or being erected in any street not repairable by the inhabitants at large (being a supply which the Company are by the existing Acts or this Act authorised to give) lay down take up alter relay or renew in across or along such street such electric lines and works as may be requisite or proper for affording such supply and the provisions of the principal Acts (other than the Electric Lighting Act 1888) and such of the provisions of the schedule to the Electric Lighting (Clauses) Act 1899 as are incorporated with the existing

Power to
lay electric
lines in
private
streets.

A.D. 1932. — Acts and this Act so far as applicable for the purposes of this subsection shall extend and apply mutatis mutandis to and for those purposes as if all such streets had been specified in the existing Acts and this Act.

(2) For the purpose of supplying electricity to any premises within the area of supply for the purposes of any Electricity Order for which the Company for the time being are or are deemed to be the undertakers (being a supply which the Company are by such Order authorised to give) the Company may lay down take up alter relay or renew in across or along any street not repairable by the inhabitants at large and situate within that area of supply such electric lines and works as may be requisite and proper for affording such supply and the provisions of the principal Acts and of the schedule to the Electric Lighting (Clauses) Act 1899 so far as applicable for the purposes of this subsection shall extend and apply mutatis mutandis to and for those purposes as if all such streets had been specified in that Electricity Order.

(3) Notwithstanding anything in the foregoing provisions of this section a local authority shall for the purposes of the powers conferred on the Company by this section be deemed to be (in addition to any other person) persons having the control or management of any street to which this subsection applies and which is situate within the borough or district of that authority and not being a street belonging to a railway company and forming the approach to any station or depot of such company.

(4) The Company shall not exercise their powers under this section with respect to any street or bridge belonging to a railway company or a canal company or forming an approach to a station wharf or depot of any railway company or canal company except with the consent of such company and in carrying out the works authorised by this section the Company shall not unreasonably obstruct or interfere with the convenient access to any such street or bridge. Provided that the consent of a railway company or a canal company for the purposes of this subsection shall not be unreasonably withheld and any dispute between the Company and any railway company or canal company under this

section shall be determined by the Minister or by an arbitrator to be appointed by him whose decision shall be final. A.D. 1932.
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58. Section 11 (Transfer of undertakings of local authorities and others to Company) of the Act of 1905 shall have effect as if— Transfer of undertakings to Company.

- (1) any reference therein to a Provisional Order under the Electric Lighting Acts 1882 and 1888 included any Electricity Order as defined in Part I of this Act;
- (2) the words “or transferred” were inserted in paragraph (1) thereof after the words “shall have been or may be granted”;
- (3) the words “the first day of January nineteen hundred and thirty-three been granted or transferred” were substituted therein for the words “the date of the passing of this Act been granted.”

59. The provisions of section 11 (Transfer of undertakings of local authorities and others to Company) of the Act of 1905 as amended by the last preceding section of this Act shall extend to enable the Company to acquire by agreement the whole or any part of the electricity undertaking (whether authorised by Electricity Order or special Act) of any undertakers to whom the Company are for the time being supplying or empowered to supply electricity in bulk or whose undertaking or any part thereof is for the time being managed by the Company and to enable any such undertakers with the approval of the Electricity Commissioners and by deed approved by those commissioners to transfer to the Company the whole or any part of their electricity undertaking and the powers conferred upon the Company by the said section 11 with respect to any undertakings acquired by them under the provisions of that section shall be exerciseable by the Company with respect to any undertaking or part of an undertaking acquired by them under the provisions of this section. Additional powers of acquiring undertakings.

60.—(1) The Company may by agreement purchase take on lease or otherwise acquire work use maintain alter and improve any generating station or sub-station and the works connected therewith or incidental thereto belonging to any local authority or other undertakers Acquisition of generating stations &c. by agreement.

A.D. 1932. — authorised to supply electricity in any area within or partly within and partly without or adjoining the area of supply or in any area which adjoins the area of supply and in which the Company are for the time being giving or under contract to give a supply of electricity in bulk and any such undertakers may transfer or lease any such generating station sub-station and works together with their powers rights authorities and privileges in connection therewith or incidental thereto to the Company on such terms as may be agreed.

(2) If the Company so acquire any such generating station sub-station or works powers rights authorities and privileges they may for the purpose of carrying on maintaining and working any such generating station sub-station or works so transferred to them and of connecting the same with the area of supply exercise all the powers rights authorities and privileges so transferred to them and any generating station sub-station or works transferred to the Company under this section or any works executed by them under any powers so transferred to them shall be deemed to form part of the undertaking of the Company.

(3) Nothing in this section shall exonerate the Company from any indictment action or other proceeding for nuisance if any nuisance is caused or permitted by the Company on any land on which any such generating station or sub-station is situated and for which nuisance any such undertakers as aforesaid would have been liable if caused by them.

(4) Nothing in this section shall authorise the Company to acquire any powers rights authorities or privileges of any undertakers with respect to the supply of electricity nor shall anything in this section authorise the Company to purchase or take on lease (other than a lease for a term ending before the expiration of seven years from the passing of this Act) any generating station or main transmission line except with the consent of the Electricity Commissioners.

(5) If any generating station acquired by the Company under the provisions of this section is or shall become a selected station for the purposes of a scheme under the Electricity (Supply) Act 1926 then in construing section 13 of that Act such station shall be deemed to be an existing generating station only to

the extent to which the Company are supplied by the Central Electricity Board for the purposes of the undertaking of which the station formed part immediately before the date of its acquisition by the Company. A.D. 1932. —

61.—(1) The consideration payable by the Company in respect of the transfer to them of— Consideration for transfer.

- (i) any undertaking or part of an undertaking or any powers rights authorities and privileges in pursuance of section 11 (Transfer of undertakings of local authorities and others to Company) of the Act of 1905 as amended and extended by the sections of this Act of which the marginal notes respectively are "Transfer of undertakings to Company" and "Additional powers of acquiring undertakings"; or
- (ii) any generating station sub-station or works in pursuance of the last preceding section of this Act;

may if the local authority or other undertakers transferring the same and the Company so agree be discharged wholly or in part by the allotment to such undertakers of fully paid-up shares or stock or debentures or debenture stock of the Company of any class and any such authorised undertakers may accept hold and dispose of such shares stock debentures or debenture stock. Provided that any capital money received by any undertakers being a local authority from the disposal of any such shares stock debentures or debenture stock shall be applied by them in manner provided by subsection (2) of section 7 of the schedule to the Electric Lighting (Clauses) Act 1899.

(2) All shares stock debentures or debenture stock issued for the purposes of this section shall for all purposes be deemed to be fully paid up.

62. The Company and the undertakers under any Electricity Order relating to an area of supply within or partly within and partly without or contiguous to the area of supply for the time being of the Company (including for the purposes of this section the area of supply under any Electricity Order for which the Company are for the time being the undertakers and any area within which the Company are for the time being authorised to supply electricity by any order or Power to manage undertakings or generating stations &c. of other undertakers.

A.D. 1932. — consent of the Electricity Commissioners) may with the approval of the Electricity Commissioners enter into and carry into effect agreements and arrangements for and with respect to the management by the Company of the whole or part of the undertaking or any generating station sub-station or other works of such other undertakers upon and subject to such terms and conditions as may be agreed between the Company and such other undertakers.

Supply in bulk.

63.—(1) The Company may with the approval of the Electricity Commissioners enter into and carry into effect arrangements and agreements for the supply of electricity in bulk by or to the Company—

(a) to or by any authorised undertakers whose area of supply is contiguous to the area of supply of the Company; or

(b) to or by any authorised undertakers whose area of supply is contiguous to—

(i) the area of supply under any Electricity Order for which the Company are for the time being the undertakers; or

(ii) the area of supply of any authorised undertakers to whom the Company are for the time being supplying electricity in bulk under the authority of any consent or order given or made under the principal Acts; or

(iii) the area of supply for the purpose of any undertaking which is for the time being managed by the Company; or

(c) to or by any authorised undertakers supplying electricity within any county which is contiguous to—

(i) the area of supply under any Electricity Order for which the Company are for the time being the undertakers; or

(ii) the area of supply for the purposes of any undertaking which is for the time being managed by the Company :

Provided that no supply of electricity shall be afforded under paragraph (c) of this subsection—

(i) within the area of supply of any authorised undertakers or power company or the district of any joint electricity authority without the

consent of such undertakers company or authority; or A.D. 1932.

- (ii) within any area (other than an area in which the Company or any subsidiary company are for the time being supplying and distributing or authorised to supply and distribute electricity) without the consent of the Central Electricity Board.

(2) Nothing in this section shall confer upon the Company any powers of breaking up any streets or roads except those which the Company are or may be authorised to break up.

(3) In this section the term "subsidiary company" means a company of whose ordinary capital more than fifty per centum is held by the Company either in their own name or in the names of their nominees.

64. The provisions of section 16 of the Electricity (Supply) Act 1919 as modified and set forth in the Fourth Schedule to the Electricity (Supply) Act 1926 and as amended by the Electricity (Supply) Act 1928 shall extend and apply in the case of any undertaking or part of an undertaking acquired by the Company under the powers conferred on them by the sections of this Act of which the marginal notes respectively are "Transfer of undertakings to Company" and "Additional powers of acquiring undertakings" and in the case of a generating station which is closed permanently or temporarily or the working or use of which is restricted under or in consequence of any agreement or arrangement entered into by the Company in pursuance of the sections of this Act of which the marginal notes respectively are "Acquisition of generating stations &c. by agreement" "Power to manage undertakings or generating stations &c. of other undertakers" and "Supply in bulk" as if such acquisition closing or restriction were an acquisition or a closing of or a restriction on the working or use of a generating station under or in consequence of the said Act of 1926. Compensation for deprivation of employment.

65.—(1) A consumer (other than any authorised undertakers) supplied with electricity by the Company under the terms of any agreement shall be deemed to be a person to whom the Company may be and are required to supply electricity within the meaning of Supply of electricity by agreement.

A.D. 1932. — section 30 of the schedule to the Electric Lighting (Clauses) Act 1899 and the provisions of that section shall apply to the supply afforded by the Company under such agreement unless those provisions are expressly excluded from application in the agreement and if the Company fail to supply electricity to such consumer they shall not be liable for any damages occasioned to the consumer by reason of such failure unless the failure is caused by or in consequence of the wilful neglect or default of the Company.

(2) The provisions of this section shall not operate to deprive any consumer of electricity supplied by the Company under the terms of any agreement existing at the passing of this Act of any right to which he would be entitled but for the said provisions.

Electricity supplied for lighting purposes to be metered separately.

66. In any case where electricity supplied by the Company to any consumer (not being authorised undertakers) is used partly for lighting purposes and partly for purposes other than lighting the Company may require that the electricity used for lighting purposes shall be measured by a separate meter and paid for at the price for the time being in force for electricity supplied for lighting purposes within the district in which the consumers' premises are situate.

Power to refuse to supply electricity in certain cases.

67. Notwithstanding anything in the principal Acts or the existing Acts or this Act or any enactment incorporated therewith respectively the Company may refuse to supply electricity—

- (i) to any person from whom any payment for the supply of electricity or meter rent is for the time being in arrear (not being the subject of a bona fide dispute) whether the payment be due to the Company in respect of the premises for which a supply is demanded or in respect of other premises; or
- (ii) to any person who is neither an authorised distributor as defined in the Act of 1900 nor the owner or occupier of the premises for which the supply is required :

Provided that if—

- (a) a supply of electricity is demanded from the Company by any person for use at a coal mine; and

(b) that supply of electricity is necessary for the continuance of pumping operations at the coal mine; and A.D. 1932.
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(c) the discontinuance or decrease of pumping operations at that coal mine would or might to the knowledge of the Company cause or tend to cause flooding of another coal mine or any part thereof;

then the Company shall not be entitled under paragraph (ii) of this section to refuse to supply to such person such quantity of electricity as may be reasonably necessary for the continuance of the pumping operations at the first mentioned coal mine so far as such pumping operations are necessary to prevent the flooding of such other coal mine or any part thereof until the expiration of seven days after the Company have given notice in writing to the owner of such other coal mine of their intention so to refuse to supply electricity. The Company shall at all times use their best endeavours to ascertain whether such discontinuance or decrease of pumping operations as is referred to in paragraph (c) of this proviso would or might cause or tend to cause the flooding of another coal mine or any part thereof.

In this proviso the expression "owner" has the same meaning as in the Coal Mines Act 1911 and the expression "coal mine" has the same meaning as in the Coal Mines Act 1930.

68. The powers of the Company under section 21 of the Electric Lighting Act 1882 of cutting off supplies of electricity and cutting or disconnecting electric lines or works and of recovering the expenses incurred in such cutting off shall be exerciseable in any case in which there remains unpaid to the Company any part of any charge or sum due to them—

Power to cut off supplies where charges &c. not wholly paid.

(a) for electricity supplied by them; or

(b) in respect of any apparatus or fitting which the Company have let on hire or supplied on hire-purchase terms and are under obligation to maintain.

69. If any authorised undertaker or other consumer supplied with electricity by the Company under any Act for the time being relating to the Company desires to discontinue to receive such supply he shall

Period of notice to discontinue supply.

A.D. 1932. (unless otherwise provided in any agreement whether existing at the passing of this Act or thereafter entered into between such consumer and the Company or unless such agreement is for a fixed term) give to the Company twelve months' notice in writing of his intention to discontinue to receive such supply. In any case to which this section applies such notice may be given so as to expire at the end of the period for which the consumer has contracted to receive and pay for such supply or at any subsequent date.

Form of
notice to
discontinue
supply.

70.—(1) A notice to the Company from a consumer for the discontinuance of a supply of electricity shall not be of any effect unless it be in writing signed by or on behalf of the consumer and left with or sent by post to the Company or be given by the consumer personally at the head office or any recognised local office of the Company.

(2) Notice of the effect of this section shall be endorsed upon any demand note for charges for electricity.

PART V.

MISCELLANEOUS.

Power to
retain sell
&c. lands.

71. Notwithstanding anything in the Lands Clauses Acts or in any other Act or Acts to the contrary the Company may retain hold and use for such time as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and in case of sale either in consideration of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest in lands acquired at any time by them and may sell exchange or dispose of any rents reserved on the sale lease exchange or disposal of such lands or interests and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange.

Persons
under dis-
ability may
grant ease-
ments &c.

72. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege

(not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

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73.—(1) The working arrangement provided for by section 3 (Working arrangement with Treforest Company) of the Act of 1908 so far as it still subsists is hereby terminated and the South Wales Power Company Limited (named in that Act of 1908 as the Treforest Electrical Consumers' Company Limited) shall within one month of the passing of this Act pay to the Company all sums (if any) then owing by them to the Company.

Revocation
of working
arrange-
ment in
Treforest
area.

(2) The debenture agent appointed by the Act of 1908 is hereby discharged and all powers and duties conferred or imposed on him by that Act or any other Act relating to the Company are hereby annulled.

74.—(1) Section 46 (Relation between price and dividend) of the Act of 1900 is hereby amended by the substitution of the words "one penny and one halfpenny" for the words "twopence and one halfpenny" in subsection (2) thereof.

Alteration
of standard
price.

(2) Nothing in this section shall prejudice or in any way affect the operation of section 31 of the Electricity (Supply) Act 1926.

75. On any representation being made to the Minister under section 47 (Revision of prices) of the Act of 1900 as amended or modified by section 13 (Modification of prices) of the Act of 1922 and by section 22 of the Electricity (Supply) Act 1922 for an Order revising or modifying the maximum prices set out in the Second Schedule to the Act of 1900 and the relation between price and dividend prescribed by section 46 (Relation between price and dividend) of the Act of 1900 and the standard price prescribed by that section as amended by this Act any sum set aside by the Company out of revenue for the purpose of providing for the redemption of any redeemable debenture stock issued in pursuance of the section of this Act

As to re-
vision of
maximum
price and
sliding scale.

A.D. 1932. — of which the marginal note is “Redeemable capital and debenture stock” shall not be taken into account by the Minister as an expense on revenue account.

Powers of
undertakers
and local
authorities
to give
financial
assistance.

76.—(1) Any authorised undertakers (not being a county council or a local authority) whose area of supply is wholly or partly within or adjacent to the area of supply of the Company shall have power—

(a) to lend to the Company on mortgage bond or other security any money which the Company are for the time being authorised to borrow; and

(b) to subscribe for purchase hold or dispose of any shares stock debenture stock or other securities of the Company;

on such terms (including the payment of consideration for the assistance given) and subject to such conditions as the authorised undertakers giving such financial assistance may think fit.

(2) The council of any county or borough or county district who are receiving or intending to receive a supply of electricity from the Company or whose county or borough or district has a population according to the last published census returns for the time being of not less than fifty thousand and is wholly or partly within the area of supply of the Company or the area of supply of any authorised undertakers taking or intending to take a supply of electricity in bulk from the Company shall have power subject as hereinafter provided—

(a) to lend to the Company on mortgage or bond any money which the Company are for the time being authorised to borrow; or

(b) to subscribe for any debenture stock issued by the Company;

on such terms (including the payment of consideration for the assistance given) and subject to such conditions as the council giving such financial assistance may think fit Provided that—

(i) Any such council shall not exercise the powers of this subsection without the consent of the Minister of Health;

(ii) Nothing in this subsection shall authorise any such council to lend any money to the Company or to subscribe for any debenture stock issued by the Company in excess of the aggregate amount of the capital expenditure which the Company have expended before or undertake to expend within five years after the date of such loan or subscription by the council within the county or borough or district of the council;

(iii) The powers of this subsection shall not be exercised by the council of any borough or county district who have entered into an agreement with the Company under section 14 (Agreements with local authorities for supply of energy) of the Act of 1922 so long as the agreement is subsisting.

(3) The raising of money for the purpose of so lending or subscribing for debenture stock shall be a purpose for which a council being authorised undertakers may borrow under the principal Acts and for which a council not being authorised undertakers may borrow—

(a) in the case of the council of a county (not being a county borough) under and in accordance with section 69 of the Local Government Act 1888 as amended by the Local Government Act 1929; and

(b) in the case of the council of a county borough or a municipal borough or a county district in like manner as for the purposes of the Public Health Acts 1875 to 1926.

(4) Any authorised undertakers being a company may exercise any such power as aforesaid notwithstanding anything contained in any Act Order or instrument by or under which they are constituted or regulated and may apply any of their funds for the purpose of lending any such money or subscribing for any such securities and may borrow for the purpose of making any such loans or subscriptions.

(5) Any authorised undertakers (whether a company or any such council as aforesaid) may exercise any such power as aforesaid notwithstanding anything in section 3 of the schedule to the Electric Lighting (Clauses) Act.

A.D. 1932. 1899 incorporated in any Order or special Act applying to them or any similar provisions contained in any such Order or special Act.

(6) Any expenses incurred by the council of a county (not being a county borough) under this section shall if the Minister of Health so directs be defrayed as expenses for special county purposes charged on such part of the county as that Minister may prescribe.

Agreements
for exercise
of works &c.

77. The Company on the one hand and any authorised undertakers or other person to whom the Company are entitled to give a supply of electricity on the other hand may enter into and carry into effect contracts agreements and arrangements for and with respect to the construction laying down erection alteration maintenance or repair by any such person on behalf of the Company or by the Company on behalf of any such person of electric lines or other works or apparatus connected therewith for the supply or use of electricity or the exercise by either party to any such contract agreement or arrangement of any powers of the other of them in reference to the matters aforesaid :

Provided that the execution or exercise of any such works apparatus or powers shall be subject to any statutory provisions or regulations which would have related to the execution or exercise thereof by such person or by the Company as the case may be.

Agreements
with railway
and canal
companies
for works.

78. The Company on the one hand and any railway company or canal company whose railway or canal or any part thereof is situate within the area of supply on the other hand may enter into and carry into effect agreements for and in relation to the construction laying down erection alteration maintenance repair and use of electric lines and works for the purposes of the existing Acts and this Act upon across or affecting any railway canal bridge or other property of any such railway company or canal company :

Provided that subsections (4) and (5) of section 22 of the Electricity (Supply) Act 1919 shall so far as applicable extend and apply to the execution of any works under any agreement made in pursuance of the provisions of this section.

79. If the Company commence proceedings for the summary recovery of a sum due for the supply of electricity any other sum due or payable to the Company in respect of the sale or hire of any apparatus or fittings supplied by them for or in connection with the consumption or use of electricity or the provision of materials and work in connection therewith or the fixing setting up repairing altering maintaining or removal thereof may be included in the same summons and may be recovered summarily if the amount due or payable in respect thereof does not exceed twenty pounds.

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As to recovery summarily of sums due for fittings.

80. In any case in which the change over from direct to alternating current supply necessitates the substitution of a new cable or other work situate in or upon the private property of a consumer the Company after giving forty-eight hours' notice in writing under the hand of the secretary to the occupier or if there be no occupier then to the owner or lessee of any house building or land in which such cable or work is laid or fixed may enter such house building or land between the hours of nine in the morning and four in the afternoon or with the authority in writing of a justice at any other time for the purpose of effecting such substitution repairing all damage caused by such entry or substitution.

Power of entry for substitution of cables &c. on change of system of supply.

81. If any person without lawful excuse (the proof whereof shall lie on him) shall wilfully interfere with any electric line or other work or apparatus used for or in connection with the supply of electricity by the Company or do or cause to be done anything which is calculated to interfere with or damage any such work or apparatus he shall for every such offence (without prejudice to any other liability or cause of action which may arise out of or by reason of such act) be liable to a penalty not exceeding five pounds.

Penalty for interference with works.

82. Save as is otherwise by the existing Acts and this Act expressly provided all offences against the existing Acts and this Act and all penalties forfeitures costs and expenses imposed or recoverable under the existing Acts and this Act may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Recovery of penalties &c.

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Recovery of
demands.

83. Proceedings for the recovery of any demand made under the authority of the existing Acts or this Act or any subsequent Act relating to the Company or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Repeal.

84. The sections of the existing Acts mentioned in the schedule to this Act are repealed to the extent mentioned in the schedule.

Costs of Act.

85. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

PART VI.

PROTECTIVE PROVISIONS.

Saving
rights of
Crown and
Forestry
Commis-
sioners.

86. Nothing in this Act shall affect prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained shall authorise the Company to take use or in any manner interfere with any land or hereditaments or any rights of whatsoever description vested in the Forestry Commissioners without the consent in writing of the Forestry Commissioners first had and obtained for that purpose.

Works be-
low high-
water mark
not to be
constructed
without con-
sent of
Board of
Trade.

87. The Company shall not under the powers of this Act or any enactment incorporated therewith construct on under or over the shore or bed of the sea or of any creek bay arm of the sea or navigable river communicating therewith below high-water mark of ordinary spring tides any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of in writing under hand as last aforesaid and where any such work may have been constructed the Company shall not at any time alter or extend the same without obtaining previously to making any alteration or extension the like consent or approval. If any work be

commenced altered extended or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the cost and charge of the Company and the amount of such costs and charges shall be a debt due from the Company to the Crown and shall be recoverable either as a debt due to the Crown or summarily as a civil debt. A.D. 1932.
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88. For the protection of the county councils of the administrative counties of Glamorgan Monmouth Carmarthen Brecknock Radnor Hereford and Gloucester and of the council of every urban district (including a borough) situate wholly or partly within any such county (except as mentioned in subsection (16) of this section) the provisions of this section (unless otherwise agreed in writing between the council and the Company) shall have effect with respect to the exercise in or affecting any highway or bridge of any of the powers conferred upon the Company by the existing Acts or this Act or any Act or Acts incorporated with the existing Acts or this Act or applying to the Company or the undertaking and shall apply to the Company and the undertaking in lieu of the provisions of sections 14 15 and 16 of the schedule to the Electric Lighting (Clauses) Act 1899 and of sections 6 to 12 (inclusive) of the Gasworks Clauses Act 1847 as incorporated with the Electric Lighting Act 1882 so far as those provisions would apply to the Company and the undertaking with respect to the exercise of the said powers within the said counties (including the said urban districts) and to any highway or bridge in or affecting which the powers are exercised :— For protec-
tion of
highway
authorities.

(1) In this section—

the term “urban district” includes a borough other than a county borough;

the word “highway” means any road repairable by the inhabitants at large Provided that for the purpose of subsections (2) and (4) of this section the word “highway” shall include—

(i) any intended street the formation of which has been commenced; and

(ii) any street laid out but not dedicated to public use; and

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(iii) any street dedicated to public use but not repairable by the inhabitants at large;

and being a street which the Company intend to break up for the purpose of laying renewing or removing electric lines for supplying electricity to any premises abutting on or being erected in such street but nothing in this section shall save so far as is provided by the said subsections (2) and (4) prejudice or affect the rights of the owner of any such street or of any other person having the control or management of any such street;

the word "bridge" means any bridge repairable by the inhabitants at large and carrying a road so repairable and includes the approaches to the bridge and the roadways and footways (if any) over the bridge and approaches;

the term "the council" means with reference to—

(i) any county road within the meaning of the Local Government Act 1929 other than a county road vested in the council of an urban district; and

(ii) any such street or intended street as aforesaid situate in a rural district; and

(iii) any bridge repairable by the inhabitants at large and carrying a county road; and

(iv) any county bridge within the meaning of the Local Government Act 1929;

the council of the administrative county in which such county road or street or bridge is situate and with reference to—

(i) any road vested in the council of an urban district (including a county road so vested); and

(ii) any such street or intended street as aforesaid situate in an urban district; and

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(iii) any bridge (not being such a county bridge as aforesaid) situate in an urban district and repairable by the inhabitants at large and carrying a road so repairable other than a county road;

the council of the urban district in which such road or street or bridge is situate;

the word "apparatus" includes any electric line or work;

the word "along" includes in on under over across at the side of and attached to;

the word "surveyor" means the surveyor to the council;

the word "plan" where relating to a bridge includes such section or sections as the surveyor may reasonably require:

- (2) (a) Before the Company commence to lay place repair or renew any apparatus along or remove any apparatus from any highway or bridge they shall (except in the cases of repairing renewing or removing consumers' service wires or of emergency when notice shall be given as soon as possible) give to the council notice of their intention so to do not less than in the case of a bridge twenty-eight clear days and in all other cases fourteen clear days;

(b) The Company shall not (except in the case of consumers' service wires or of emergency) exercise their powers of laying placing or renewing any apparatus along any highway or bridge otherwise than according to a plan approved by the council or (failing such approval) determined by arbitration which plan shall be upon such scale and contain such details as the council may reasonably require and shall be delivered to the council by the Company. Provided that unless within the period of twenty-eight clear days from such delivery of a plan relating to a bridge or fourteen clear days from such delivery of a plan relating to a highway the council intimate to the Company any objection to the plan they shall be deemed to have approved thereof

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Provided also that if as respects any highway or bridge the Company desire to avail themselves of the provisions as to payments to be made to them by the council contained in subsection (4) of this section they shall at the same time as they deliver to the council such plan give to the council notice of such their desire and if such last-mentioned notice be given all apparatus to be laid or placed by the Company as shown on such plan shall be laid or placed in such position along the highway or bridge or any land acquired by or vested in the council for the purpose of widening or deviating the highway or bridge and at such depth below or height above the surface of the highway or bridge or of the ground as the council may reasonably direct within the said period of twenty-eight clear days or fourteen clear days (as the case may be) and the surveyor shall be entitled to superintend the execution of the works for the purpose of ensuring compliance by the Company with such directions:

- (3) Nothing in the existing Acts or this Act shall authorise the Company to interfere with the structure of any bridge without the consent of the council which consent shall not be unreasonably withheld and may be given upon such conditions as the council may reasonably determine:
- (4) Nothing in the existing Acts or this Act shall interfere with the right of the council to alter the level of deviate widen reconstruct or improve any highway (each of which works is in this section referred to as a "highway alteration") or to remove alter rebuild widen or repair any bridge (each of which works is in this section referred to as a "bridge alteration") along which highway or bridge any apparatus has or shall have been laid or placed in the same manner as if the existing Acts and this Act had not been passed. If for the purposes of or in connection with any such highway alteration or bridge alteration it shall be reasonably necessary to take up or alter the level or position of or divert any apparatus laid or placed along the highway or bridge the Company may and (if

reasonably required by the council) shall either take up and relay or replace in the same or some other position or alter the level or position of or divert such apparatus in such manner and to such extent as may be agreed between the council and the Company or (failing such agreement) determined by arbitration or (where reasonably expedient) lay or place as may be agreed or determined as aforesaid new apparatus in lieu of the existing apparatus and the cost of such taking up replacement alteration or diversion or of the provision and laying or placing of such new apparatus—

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(a) if the existing apparatus was laid or placed after the passing of this Act but not in pursuance of or in compliance with any directions given by the council under subsection (2) (b) of this section shall be borne and paid by the Company; and

(b) if the existing apparatus was laid or placed after the passing of this Act and also in pursuance of or in compliance with such directions as aforesaid or if the council shall have failed to give directions with respect to such apparatus pursuant to the said subsection (2) (b) or if the existing apparatus was laid or placed before the passing of this Act shall be borne by the council and be paid by them to the Company :

Provided that in all such cases as are mentioned in paragraph (b) of this subsection the council shall afford to the Company free of charge all reasonable facilities for temporarily carrying or accommodating the existing apparatus so as not to interrupt the continuous supply of electricity through the same and if in lieu of altering the level or position of or diverting the existing apparatus the Company shall lay or place in an altered or new position or at an altered level apparatus of greater dimensions than the existing apparatus or (on account of the worn or defective condition of the existing apparatus) substituted apparatus of not greater dimensions than but in lieu of the existing

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apparatus the amount (hereinafter referred to as "the gross amount") which would but for this proviso be payable by the council under the said paragraph (b) shall be reduced to an amount to be agreed between the council and the Company or (failing such agreement) determined by arbitration such amount being (i) in the case of apparatus of such greater dimensions as aforesaid a sum bearing to the gross amount the proportion which the dimensions of the existing apparatus bear to such greater dimensions or (ii) in the case of substituted apparatus a sum bearing to the gross amount the proportion which the effective life of the existing apparatus bears to that of the substituted apparatus :

Provided also that if on the completion of any highway alteration or bridge alteration it shall be agreed between the council and the Company or (failing such agreement) determined by arbitration that any apparatus originally laid or placed in pursuance of or in compliance with any directions given by the council under subsection (2) (b) of this section was so laid or placed at a depth below or height above the surface of the highway or bridge or of the ground greater than was reasonably sufficient in order to adapt the same to such highway alteration or bridge alteration the Company shall be entitled to raise or lower the level of the apparatus to such extent as may be agreed or determined as aforesaid and the council shall repay to the Company the cost reasonably incurred by them in so doing :

- (5) When any highway alteration or bridge alteration shall have been completed the Company shall have the same rights and powers with respect to the highway or bridge as they had with respect thereto before such alteration was carried out :
- (6) All works of the Company shall be so executed that so far as reasonably practicable the traffic on any highway or over any bridge shall not be impeded or interfered with and the Company

shall not break up at any one time a greater length of the roadway or footway than shall be reasonably specified by the surveyor: A.D. 1932.
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- (7) If at any time when the Company are about to lay place repair or renew any apparatus along or remove any apparatus from any highway or bridge the council shall give notice to the Company requiring the Company so to do the Company shall in accordance with the reasonable directions and to the reasonable satisfaction of the surveyor after the apparatus has been laid placed repaired renewed or removed restore so much of the highway or bridge as shall be broken up or damaged by the Company to the condition and strength in which it was immediately before such breaking up:
- (8) (a) Notwithstanding anything in this Act the council may by notice given to the Company before the Company shall have completed laying placing repairing or renewing any apparatus along or removing any apparatus from any highway or bridge elect themselves to restore such portion of the highway or bridge as has been broken up or damaged by the Company If the council give such notice they shall as soon as the apparatus shall have been so laid placed repaired renewed or removed by the Company restore the said portion of the highway or bridge to the condition and strength in which it was immediately before such breaking up or damage and the Company shall repay to the council all expenses reasonably incurred by the council in making such restoration and after making such payment shall not be under any obligation with regard to the restoration reinstatement or making good of the said portion of the highway or bridge;

(b) If the council give to the Company any such notice as is referred to in paragraph (a) of this subsection the Company shall give to the council notice in writing of the completion of the laying placing repairing renewing or removing of the apparatus for which the highway or bridge was broken up or damaged and

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the council shall indemnify the Company from and against all claims demands damages costs charges and expenses which may be made against or incurred by the Company in respect of any accident or occurrence happening after the expiration of forty-eight hours (excluding from the computation of that period any part of a Sunday Christmas Day Good Friday or any bank or public holiday) from the receipt by the council of any notice so given by the Company and by reason of or in consequence of the highway or bridge not having been so restored as aforesaid:

- (9) The Company shall make good or bear the cost of making good any subsidence of any highway or of the roadway or footway on any bridge which may arise at any time within three months from the completion of any restoration by the Company or the council of such highway or bridge under subsections (7) or (8) of this section except when the restoration shall have been made by the council and the subsidence shall result from or be contributed to by any negligence on the part of the council or their contractors servants workmen or agents in connection with the restoration (in which excepted case the subsidence shall be made good by the council at their own expense) but the Company shall not be under any liability to make good or bear the cost of making good any such subsidence which may arise after the expiration of such period of three months:
- (10) The Company shall pay to the council the reasonable expenses incurred by them in relation to the reasonable superintendence by the council or the surveyor of the execution by the Company of any of the works referred to in this section:
- (11) Where for the purposes of the Company boxes or other like apparatus shall be placed in the surface of the roadway of any highway or bridge and the council shall require the same to be surrounded or protected by sett paving or other adequate form of protection the Company shall at their own cost provide such protection

to the reasonable satisfaction of the council and for the purposes of this section any such sett paving shall be deemed to form part of the apparatus in connection with which it is provided or required to be provided:

- (12) Where the consent of the Minister has been obtained to the placing of any electric line above ground any standard pole or other structure for carrying the electric line shall be placed in or upon any highway or bridge so as to interfere as little as may be with the statutory powers and duties of the council in reference to such highway or bridge and so as not to be or be likely to become an obstruction to traffic or dangerous to the public:
- (13) Any consent approval notice intimation requirement or direction to be given by the council under this section shall be given in writing under the hand of the clerk to the council or the surveyor:
- (14) Any matter required by this section to be determined by arbitration and any difference which may arise between the council and the Company under this section shall be referred to and determined by an arbitrator or other tribunal to be agreed upon between them or failing agreement to be appointed or nominated by the Minister on the application of either party after notice in writing to the other party and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference:
- (15) (a) Nothing in this section shall affect any power of the Company under sections 6 to 12 (inclusive) of the Gasworks Clauses Act 1847 as incorporated with the Electric Lighting Act 1882 to open and break up any sewer drain or tunnel within or under any highway or bridge to which this section applies;
- (b) The provisions of this section so far as they apply to the council shall be in lieu of such of the provisions of section 17 of the schedule to the Electric Lighting (Clauses)

A.D. 1932.
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Act 1899 as confer on the council power to alter the position of any electric lines or works of the Company being under any highway or bridge to which this section applies:

- (16) Nothing in this section shall apply to the Council of any of the under-mentioned boroughs and urban districts or to any highway or bridge in any such borough or urban district except (i) a county road vested in the council of the administrative county in which the borough or urban district is situate and (ii) a bridge repairable by the inhabitants at large and carrying a county road and (iii) a county bridge within the meaning of the Local Government Act 1929.

The boroughs and urban districts which are referred to in this subsection and to the council of which this section shall not apply are—

In the administrative county of Glamorgan—

Urban districts of Aberdare Bridgend
Caerphilly Gelligaer Maesteg Pontypridd
and Porthcawl.

In the administrative county of Monmouth—

Urban districts of Abertillery Bedwas
and Machen Bedwelty Blaenavon Ebbw
Vale and Mynyddislwyn.

In the administrative county of Carmarthen—

Boroughs of Carmarthen and Llanelly.

In the administrative county of Brecknock—

Borough of Brecon.

For further
protection
of Gla-
morgan and
Monmouth-
shire
County
Councils.

89.—(1) Section 48 (For protection of county councils) of the Act of 1900 is hereby amended as follows:—

- (i) In paragraph (A) thereof the words “alter the position of or temporarily interrupt” shall be substituted for the words “or altering the position of or temporarily interrupting”;
- (ii) In paragraph (B) thereof the words “at any time before” shall be substituted for the words “at any time of”;

(iii) In paragraph (B) thereof the words "shall be applied for and obtained" shall be substituted for the words "shall have been applied for and obtained";

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(iv) In paragraph (B) thereof the words "the line and position in which" shall be substituted for the words "the line and position which";

(v) In paragraph (E) thereof the words "proposed to be" shall be repealed.

(2) The said section 48 as amended by this section and by subsection (2) of section 2 (Application of Electricity (Supply) Act 1919 and amendment of Act of 1900) of the Act of 1925 shall (notwithstanding anything in this Act) continue to apply to all electric lines wires mains pipes street boxes and other apparatus and property of the Company which have been laid placed or constructed by the Company before the passing of this Act under the powers of the Act of 1900 and to which that section applied immediately before the passing of this Act but except as aforesaid nothing in the said section 48 shall apply to or with respect to any apparatus as defined in the section of this Act of which the marginal note is "For protection of highway authorities" whether laid or placed by the Company before or after the passing of this Act or to any highway or bridge in on over under across at the side of or attached to which such apparatus has been or shall be laid or placed.

(3) Notwithstanding anything in the said section of this Act of which the marginal note is "For protection of highway authorities" nothing in that section shall apply to any apparatus (as defined in the section) to which the provisions of the said section 48 applied immediately before the passing of this Act and will continue to apply under subsection (2) of this section.

90. Nothing in this Act shall authorise or empower the Company to break up or interfere with any street or to lay or construct any electric line or work in the city and county of Bristol as from time to time constituted except with the previous consent in writing of the lord mayor aldermen and burgesses of the city of Bristol under the hand of the town clerk of the city.

For protec-
tion of
Bristol
Corporation.

A.D. 1932.

—
For protec-
tion of
Gloucester
Corporation.

91. Nothing in this Act shall empower the Company to erect any electric line or work above ground in the city of Gloucester as from time to time constituted or except with the previous consent in writing of the mayor aldermen and citizens of the said city to break up or interfere with any street or to lay or construct any electric line or work below ground in the said city.

For protec-
tion of
Pontypridd
Urban Dis-
trict
Council.

92. For the protection of the Pontypridd Urban District Council (hereinafter in this section called "the council") the following provisions shall unless otherwise agreed between the council and the Company have and take effect :—

- (1) The provisions of subsections (1) and (3) of section 50 (For protection of Pontypridd Urban District Council) of the Act of 1900 shall extend and apply to and in relation to the exercise of the powers of this Act as if those subsections were set out in this section :
- (2) Any dispute or difference arising between the council and the Company under the said section 50 of the Act of 1900 or under this section shall be referred to and determined by a single arbitrator or other tribunal to be appointed or nominated by the Minister on the application of the council or the Company after notice in writing to the other of them and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference and determination.

For protec-
tion of cer-
tain autho-
rities.

93.—(1) So long as any of the local authorities named in subsection (2) of this section shall take from the Company under any existing or future agreement with the Company a supply of electricity in bulk to be used for the purposes of distribution under any Act or Electricity Order for which the local authority are for the time being the undertakers the following provisions shall have effect :—

- (a) The Company shall not except with the consent of the local authority supply electricity to any consumer in the area of supply of the local authority under such Act or Electricity Order unless the consumer guarantees to take

or to pay for at least fifty thousand units per annum; and A.D. 1932.

- (b) A consumer taking from the Company a supply of electricity for power on any premises in such area of supply of the local authority shall not except with the consent of the local authority use for lighting purposes in any year more than twenty per centum of the total amount of electricity supplied to him by the Company during that year :

Provided that the consent of any local authority under this subsection shall not be unreasonably withheld and any dispute between the Company and any local authority as to whether any consent of the local authority has in any particular case been unreasonably withheld shall be referred to and determined by the Electricity Commissioners.

(2) The local authorities referred to in subsection (1) of this section and to which the provisions of this section shall apply are the respective councils of the respective urban districts of Bedwas and Machen Bedwellty Caerphilly Gelligaer and Mynyddislwyn.

(3) Nothing in this section shall operate to deprive any consumer of electricity supplied by the Company under the terms of any agreement existing on the third day of March nineteen hundred and thirty-two of any right to which the consumer would be entitled under such agreement if this section had not been enacted.

94. Nothing in the South Wales Electric Power Acts 1900 to 1932 shall empower the Company without the consent of the Llanelly and District Electric Supply Company Limited (in this section referred to as "the Llanelly Company") to lay or place any electric line or other work within the area of supply of the Llanelly Company under the Llanelly Electricity Orders 1891 to 1928 or to supply electricity to any authorised undertakers whose area of supply is situate outside the area of supply of the Company and to whom the Llanelly Company are at the date of the passing of this Act supplying or under contract to supply electricity :

For protec-
tion of
Llanelly and
District
Electric
Supply
Company
Limited.

Provided that such consent shall not be unreasonably withheld and any dispute between the Company and the Llanelly Company as to whether such consent has

A.D. 1932. — been unreasonably withheld shall be determined by the Minister or by an arbitrator to be appointed by him whose decision shall be final.

For mutual protection of Company and certain colliery companies.

95.—(1) For the purpose of the existing Acts and this Act and any subsequent Act relating to the Company and of any Electricity Order for which the Company are for the time being the authorised undertakers the provisions of sections 17 and 18 of the schedule of 1899 shall extend and apply to and for the protection of every protected company (as hereinafter defined) in relation to their respective standard electric lines (as hereinafter defined) as if—

- (i) such electric lines were pipes and wires within the meaning of section 17 of the schedule of 1899 to which a body or person was entitled and the position of which was authorised to be altered by the Company; and
- (ii) every protected company were an electric supply company within the meaning of section 18 of the schedule of 1899; and
- (iii) such electric lines had been placed under the powers of the Electric Lighting Act 1882;

but nothing in this subsection shall be construed as conferring on any protected company any power to alter the position of any electric line or other work of the Company.

(2) Where a protected company—

- (a) require to dig or sink any trench for laying down or constructing any new electric line (other than such as may be proposed to be constructed in private premises belonging to or in the occupation of the protected company) or other work near to which any electric line or other work of the Company for the supply of electricity has been lawfully placed; or
- (b) find it necessary to undermine but not to alter the position of any electric line or other such work of the Company; or
- (c) lay any electric line crossing or liable to touch any electric line or other such work of the Company;

the protected company shall in relation to the said matters respectively comply with the same requirements and be subject to the same obligations to make full compensation for any loss damage penalty or costs in case of default as are in relation to the said matters imposed upon operators by section 18 of the schedule of 1899. A.D. 1932.

(3) For the purposes of the foregoing provisions of this section the provisions of sections 17 and 18 of the schedule of 1899 shall be deemed to extend to and include all standard electric lines of any protected company and all electric lines of the Company placed above ground.

(4) (a) Whenever the Company in the exercise of the powers of the existing Acts and this Act and any subsequent Act relating to the Company or of any Electricity Order for which the Company are for the time being the authorised undertakers require to execute any work over under or within three feet of any apparatus (as hereinafter defined) belonging to a protected company or whenever a protected company require to execute any work over under or within three feet of any apparatus of the Company the Company or the protected company requiring to execute the work (in this section referred to as "the operators") shall give to the protected company or to the Company owning the apparatus (in this section referred to as "the owners") not less than three days' notice before commencing to execute such work except in emergency and then so soon as is possible after the beginning of the work or the necessity for the work shall have arisen and the owners shall be entitled by their officer to superintend the work and the operators shall conform with such reasonable requirements as may be made by the owners or their officer for protecting from injury every such apparatus and for securing access thereto and shall also if required so to do by the owners repair any damage that may be done thereto.

(b) Where the operators find it necessary to undermine any such apparatus they shall temporarily support the same in position during the execution of their works and before completion provide a suitable and proper foundation for the apparatus where so undermined.

(c) If the operators make default in complying with any of the requirements of this section they shall

A.D. 1932. — make compensation to the owners for any loss damage penalty or costs which the owners may incur by reason thereof.

(5) (a) Every protected company shall forthwith cause a map to be made of the area within which they have laid standard electric lines or apparatus and shall cause to be marked thereon the line and depth below the surface of all underground standard electric lines and apparatus (other than such as have been laid in private premises belonging to or in the occupation of the protected company) and shall once in every year cause that map to be duly corrected so as to show the then existing lines and apparatus other than as aforesaid.

(b) A copy of the said map shall at the same time be supplied by the protected company to the Company. Once in each year the Company shall return the copy of the said map to the protected company who shall correct it to show their then existing standard electric lines and apparatus and again return it to the Company.

(6) If any difference shall arise between the Company and any protected company under this section (other than a difference or dispute which in consequence of the provisions of subsections (1) (2) and (3) of this section would be determined by arbitration under and in pursuance of the provisions of sections 17 and 18 of the schedule of 1899) the difference shall be referred to and settled by an arbitrator to be agreed upon or failing agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to the reference.

(7) In this section—

“protected company” means each of the following companies :—

Amalgamated	Anthracite	Collieries
Limited;		
Bwllfa	and	Cwmaman
Limited;		Collieries
Cory Brothers and Company Limited;		
D. Davis and Sons Limited;		
Ebbw Vale Steel Iron and Coal Company		
Limited;		

A.D. 1932.
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Llewellyn (Nixon) Limited;
Oakdale Steam Coal Company Limited;
Ocean Coal Company Limited;
Powell Duffryn Steam Coal Company
Limited;
Taff Merthyr Steam Coal Company
Limited;
Tredegar Iron and Coal Company
Limited;
United National Collieries Limited;
Welsh Associated Collieries Limited;
Welsh Navigation Steam Coal Company
Limited;

and includes their respective successors and
assigns;

“ the schedule of 1899 ” means the schedule to
the Electric Lighting (Clauses) Act 1899;

“ electric line ” has the same meaning as in the
Electric Lighting Act 1882 and includes an
electric line placed above ground;

“ standard electric line ” means an electric line
belonging to a protected company and which
is so constructed and used as to comply with
any regulations from time to time made by
the Electricity Commissioners under section 6
of the Electric Lighting Act 1882 and section 4
of the Electric Lighting Act 1888 with regard
to the securing the safety of the public from
personal injury or from fire or otherwise;

“ apparatus ” means any main pipe or apparatus
for the supply of water or gas or compressed
air or for the delivery of any product of
either the Company or a protected company.

A.D. 1932.

The SCHEDULE referred to in the
 foregoing Act.

Year of Act.	No. of section.	Marginal note.	Extent of repeal.
1900	2	Exempting certain provisions of Electric Lighting Acts.	The whole section.
	14	Shares not to be issued until one-fifth paid.	The whole section.
	16	Receipt in case of persons not sui juris.	The whole section.
	28	Debenture stock - -	The whole section.
	32	Qualification of directors -	The whole section.
	41	Notice of discontinuance of supply.	The whole section.
	50	For protection of Pontypridd Urban District Council.	Subsection (4).
1902	2	Incorporation of general Acts.	So much thereof as relates to the Electric Lighting Act 1888 and the Electric Lighting (Clauses) Act 1899.
1905	2	Incorporation of general Acts.	So much thereof as relates to the Electric Lighting Act 1888 and the Electric Lighting (Clauses) Act 1899.
1906	6	Shares not to vest until one-fifth part paid up.	The whole section.
	7	New shares to be subject to same incidents as other shares.	The whole section.
	9	Receipt in case of persons not sui juris.	The whole section.
	12	For appointment of a receiver.	The whole section.
	30	Subscription of shares in or loans to other companies and payment of commission.	The whole section.
1908	3	Working arrangement with Treforest Company.	The whole section.
	4	Working agreements - -	The whole section.
	5	Appointment of debenture agent.	The whole section.

[22 & 23 GEO. 5.]

South Wales
Electric Power Act, 1932.

[Ch. xii.]

Year of Act.	No. of section.	Marginal note.	Extent of repeal.
1908	22	Issue of capital and exercise of borrowing powers at a discount.	The whole section.
	24	Prescribed scale of voting -	The whole section.
	25	Power to sell works &c. -	The words "with the " consent of the de- " benture agent " and the proviso.
1922	8	Prescribed scale of voting -	The whole section.
	12	Method of charging for energy.	Subsection (4).
	14	Agreements with local authorities for supply of energy.	All references to the Treforest Company and proviso (c) of subsection (1).
	15	Amendment of working arrangement.	The whole section.
	16	Agreements with Treforest Company.	The whole section.

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